Agenda Summary Mir

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MINUTES OF A CITY COUNCIL MEETING

June 24, 2025

1:30 PM

Mayor Keeley opened the City Council Closed Session at 1:31 p.m. in a public meeting via Zoom and in Council Chambers, for the purpose of announcing the agenda, and receiving public testimony.

Roll Call

Present: Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.

Absent: None.

Staff: City Manager M. Huffaker, City Attorney T. Condotti, Deputy City Manager/Director of Economic Development and Housing B. Lipscomb, Deputy City Clerk Administrator J. Wood, City Clerk Administrator B. Bush.

Statements of Disqualification - None.

Public Comment

Mayor Keeley opened the public comment period at 1:32 p.m. There were no speakers. Mayor Keeley closed the public comment period at 1:33 p.m., at which time the meeting was closed to the public and Council adjourned to the Courtyard Conference Room.

Closed Session

1. Conference With Legal Counsel - Liability Claims (Government Code §54956.95)

1) Claimant: Miah Murray
2) Claimant: Christina Olsen
3) Claimant: Armando Tellez
4) Claimant: Michael Bradley Alerich
5) Claimant: Installed Building Products

Claims against the City of Santa Cruz

Council received a status report, took up under agenda item 22, and no reportable action was taken.

2. Conference with Legal Counsel – Anticipated Litigation (Government Code §54956.9(d)(2))

Significant exposure to litigation (one potential case to be discussed).

Council received a status report, gave direction, and took no reportable action.

City of Santa Cruz
809 Center Street
Santa Cruz, California 95060

MINUTES OF A CITY COUNCIL MEETING
June 24, 2025

2:00 PM

Call to Order – Mayor Keeley called the meeting to order at 2:02 p.m. in Council Chambers.

Roll Call

Present: Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.

Absent: None.

Staff: City Manager M. Huffaker, Assistant City Manager M. Templeton, City Attorney T. Condotti, Director of Public Works N. Nguyen, Deputy City Manager/Director of Economic Development and Housing B. Lipscomb, Director of Finance E. Cabell, Director of Parks and Recreation T. Elliot, Director of Water H. Luckenbach, Chief of Fire R. Oatey, Director of Planning and Community Development L. Butler, Deputy Chief of Police J. Bush, Director of Information Technology K. Morgan (via Zoom), Supervisor of Special Events, Classes, and Promotions A. Bryant, Superintendent of Recreation T. Hedden-Jones, Principal Transportation Planner C. Gallogly, Asset and Development Manager D. McCormic, Senior Planner R. Zhou, Deputy City Clerk Administrator J. Wood, City Clerk Administrator B. Bush.

Oral Communications Announcement - The Mayor provided a brief announcement about Oral Communications.

Oral Communications

At 2:03 p.m. Mayor Keeley opened Oral Communications for members of the public who wished to speak regarding items not listed on the City Council agenda.

Unidentified person spoke regarding the Harvey West Pool.

Kevin Cummings spoke regarding the St. George settlement and thanked Council for prioritizing tenant protections.

Oral Communications (continued)

Unidentified person spoke regarding AB 1243 and SB 684 and asked Council to show their support for these bills by adopting a resolution.

Kevin Norton spoke regarding community and social trust.

Unidentified person spoke regarding the word “indivisible” and the “No Kings” demonstrations.

Michael Spatafore spoke regarding the Murray Street Bridge construction.

Pauline Seales spoke regarding the “No Kings” demonstrations.

Bradley Snyder spoke regarding the US Open and the New York City Mayoral election.

James Ewing-Whitman spoke regarding the items he will be speaking on, the US flag, and read from an article about Iran.

Greg Cole spoke regarding Three Princes Surf Point.

At 2:22 p.m. Mayor Keeley closed Oral Communications.

Presentations

3. Mayoral Proclamation Declaring June 2025 as Elder Abuse Awareness Month

   Councilmember Trigueiro read from a proclamation declaring June 2025 as Elder Abuse Awareness Month. Tracey Heggum, Senior Social Worker with Adult Protective Services, spoke.

4. Mayoral Proclamation Declaring July 2025 as Parks and Recreation Month

   Councilmember Golder read from a proclamation declaring July 2025 as Parks and Recreation Month. Supervisor of Special Events, Classes, and Promotions A. Bryant gave a presentation.

Presiding Officer's Announcements – Councilmembers spoke in honor of Mike Rotkin and his service and dedication to Santa Cruz.

Statements of Disqualification – Councilmember Brunner announced she will be recusing herself from item 20 as it relates to her employment.

Additions and Deletions – None.

City Attorney Report on Closed Session – See page 7972 for the report.

Council Meeting Calendar

5. The City Council reviewed the meeting calendar **-** City Clerk Administrator B. Bush reminded Council of the special meeting scheduled for August 4, 2025.

Consent Agenda

Councilmember Golder pulled item 20 for further discussion and made a comment on items 18 and 19.

Councilmember O'Hara made a comment on items 9, 10, and 11.

Vice Mayor Kalantari-Johnson made a comment on items 12, 16, 17, and 19.

Councilmember Newsome made a comment on items 16, 17, 19, and 34.

Councilmember Brunner made a comment on items 12, 16, 17, 34, and 35.

Councilmember Trigueiro made a comment on items 16, 17, and 26, and 29.

Principal Transportation Planner C. Gallogly responded to Council questions regarding item 29.

Mayor Keeley opened the public comment period. The following people spoke:

Unidentified person spoke regarding items 8, 16, and 17.

Unidentified person spoke regarding items 18, 16, and 17.

Jasmine spoke regarding item 40.

Gillian Greensite spoke regarding item 18.

Unidentified person spoke regarding item 26, 35, 16, and 7.

Judi Grunstra spoke regarding item 19.

Sherry Deng spoke regarding item 40.

Unidentified person spoke regarding item 17.

Mayor Keeley closed the public comment period.

Consent Agenda (continued)

MOTION: Councilmember Golder moved, seconded by Councilmember O'Hara, to approve the remaining Consent Agenda.

ACTION: The motion carried with the following vote.

AYES:	Councilmembers Trigueiro (with the exception of item 8), Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	Councilmember Trigueiro (item 8, due to her absence from the June 10th meeting).

6. Resolution Extending the Emergency Declarations in Connection with the 2022/2023 Winter Storms and 2023/2024 Winter Storms (CA)

   LOCATION: Citywide

   Resolution No. NS-30,517 was adopted extending by sixty days the Local Emergency Declarations in connection with the 2022/2023 and 2023/2024 winter storms.

7. Resolution Extending the Emergency Declaration in Connection with the December 2024 Municipal Wharf Emergency (CA/CM)

   LOCATION: District 4

   Resolution No. NS-30,518 was adopted extending by sixty days the Local Emergency Declaration in connection with the December 2024 Municipal Wharf emergency.

8. Minutes of the June 10, 2025 City Council Meeting (CC)

   LOCATION: None

   Motion carried to approve as submitted.

Consent Agenda (continued)

9. Long-Term Safe Parking Operations and Management Award Contract (CM)

   LOCATION: District 1

   Motion carried to award a contract to People First of Santa Cruz County for the Long-Term Safe Parking Program operations and management in the amount of $489,732 and to authorize the City Manager to execute an agreement in a form approved by the City Attorney pending adoption of the FY 2026 approved budget. The Director of Homelessness Response and Community Programs is authorized to execute change orders within the approved budget.

10. Emergency Shelter Transportation Program Operations and Management Award Contract (CM)

LOCATION: District 1

Motion carried to award a contract to Community [illegible]/Lift Line, Santa Cruz, CA for transportation operations for the Emergency Shelter Program in the amount of $437,994 and to authorize the City Manager to execute an agreement in a form approved by the City Attorney pending adoption of the FY 2026 approved budget. The Director of Homelessness Response and Community Programs is authorized to execute change orders.

11. City Overlook Emergency Shelter Operations and Management Award Contract (CM)

LOCATION: District 1

Motion carried to award a contract to People First of Santa Cruz County for the City Overlook emergency shelter operations and management in the amount of $4,292,879, and to authorize the City Manager to execute an agreement in a form approved by the City Attorney pending adoption of the FY 2026 approved budget. The Director of Homelessness Response and Community Programs is authorized to execute change orders within the approved budget.

Consent Agenda (continued)

12. Award Contract for California Youth Service Corps Grant (CM)

LOCATION: Citywide

Motion carried to award a contract to Central Coast Energy Services (CCES) in the amount of $1,758,097.44 to implement the Monterey Bay Green Youth Service Corps project funded through a grant from California Volunteers State General Funds 0650-0001-001 and authorize the City Manager to execute an agreement in a form approved by the City Attorney.

13. Approval of Three (3) Professional Service Agreements for Qualified Consulting Firms to Provide On-call Environmental Consulting Services for California Environmental Quality Act (CEQA) and National Environmental Policy Act (NEPA) Compliance and Environmental Permitting Services (CM)

LOCATION: Citywide

Motion carried to approve the Professional Service Agreements for Qualified Consulting Firms to provide On-call Environmental Consulting Services for California Environmental Quality Act (CEQA) and National Environmental Policy Act (NEPA) Compliance and Environmental Permitting Services (CM).

14. Award Contract for Resilient Coast 2.0: Shoreline Adaptation Management Plans Funded by Ocean Protection Council Senate Bill 1 Grant Award - Budget Adjustment (CM)

LOCATION: Districts 2, 3, 4, and 6

Motion carried to:

- Adopt Resolution No. NS-30,519 amending the Fiscal Year 2025 budget in the amount of $509,970.00 to carry out the Ocean Protection Council grant funded project Resilient Coast Santa Cruz 2.0; and

- Award a contract for coastal climate adaptation and environmental planning services to complete the Resilient Santa Cruz 2.0: Shoreline Adaptation Management Plans Project (Project) to AECOM Technical Services, Inc. (AECOM) in the amount of $395,999.35, reject all other proposals, and authorize the City Manager, or designee, to execute a contract in a form approved by the City Attorney with AECOM. The Purchasing Manager is authorized to execute change orders within the approved budget.

Consent Agenda (continued)

15. Designation of Voting Delegate to Attend the League of California Cities (LOCC) Annual Conference (CN)

LOCATION: Citywide

Motion carried to designate Councilmember Brunner as the voting delegate to attend the League of California Cities Annual Conference in Long Beach on October 8-10, 2025.

16. A Resolution Condemning the Use of Military Force in Civilian Communities, Recognizing the Contributions of Immigrants Locally and Nationally, and Affirming Santa Cruz's Commitment to the Constitutional Rights of All People (CN)

LOCATION: Citywide

Resolution No. NS-30,520 was adopted condemning the use of military force in civilian communities, recognizing the contributions of immigrants locally and nationally, and affirming the City of Santa Cruz's commitment to the Constitutional rights of all people.

17. A Resolution Affirming the City of Santa Cruz's Commitment to Abide by the California Trans State of Refuge Act and Support for the Transgender, Gender Queer, Non-binary, Gender Fluid, Gender Non-conforming, and Intersex Community (CN)

LOCATION: Citywide

Resolution No. NS-30,521 was adopted affirming the City of Santa Cruz's (City) commitment to abide by the California Trans State of Refuge Act and support for the transgender, gender queer, non-binary, gender fluid, gender non-conforming, and intersex community.

Consent Agenda (continued)

18. Award Contract for Bethany Curve Bridge Culvert Community Mosaic Public Art - Budget Adjustment (EDH)

    LOCATION: District 6

    Motion carried to:

    - Award a contract to Community Arts & Empowerment for the Bethany Curve Bridge Culvert Community Mosaic Public Art in the amount of $188,204;

    - Authorize the City Manager to execute an agreement, amendments, and any related documents, in a form approved by the City Attorney, with Community Arts & Empowerment for the Bethany Curve Bridge Culvert Community Mosaic Public Art; and

    - Adopt Resolution No. NS-30,522 amending the FY 2026 budget to transfer funding from the Water Department Percent for Public Art (Fund 714) to the CIP Public Art Fund (Fund 313) for the Bethany Curve Bridge Culvert Community Mosaic Public Art project.

19. Downtown Play and Paseos Project – Conceptual Design (EDH)

    LOCATION: District 4

    Motion carried to:

    - Accept the staff recommendation for landscape and paseo improvements, and authorize and direct staff to proceed with Phase 2 of the Downtown Play and Paseos Project, including contracting with SWA Landscape Architects to prepare construction plans and specifications within the approved budget (ED IIG Parks and Paseos - c512402); together with execution of any necessary actions and documents; and

    - Approve the CEQA determination contained in this agenda report. The Council's action is exempt from CEQA under Section 15262 – Feasibility and Planning Studies, Sections 15301 – Existing Facilities, and 15304 – Minor Alterations to Land.

At this time, Councilmember Brunner left the dais.

Consent Agenda (continued)

20. Resolution to Authorize the City Manager to Finalize and Execute Agreements, in a Form Approved by the City Attorney, to Facilitate the Financial Closing Necessary for the Construction of the Downtown Library and Affordable Housing/Downtown Library Mixed-Use Project (DLAHP or DTLMU) Developed by Eden Housing, Inc. and For the Future Housing Inc. (Affordable Housing Developers) (EDH)

LOCATION: District 4

Mayor Keeley opened the public comment period. The following people spoke.

John Hall
Unidentified person
Unidentified person
Unidentified person
Unidentified person
James Ewing

Mayor Keeley closed the public comment period.

Deputy City Manager/Director of Economic Development and Housing B. Lipscomb responded to Council questions.

MOTION: Councilmember Newsome moved, seconded by Councilmember Golder, to adopt Resolution No. NS-30,523 authorizing the City Manager, or their designee, to:

- Execute and record a final Parcel Map for 119 Lincoln Street dividing the City of Santa Cruz's (City) existing property into two separate legal parcels (Affordable Housing/ Residential Components parcel and City Components parcel) and execute and record in the official records a Reciprocal Easements/Covenants, Conditions and Restrictions (CC&Rs) Agreement governing the joint use and operation of the parcels and the separate projects constructed on each parcel in a form approved by the City Attorney.

Consent Agenda (continued)

20. Resolution to Facilitate the Financial Closing Necessary for the Construction of the Downtown Library and Affordable Housing/Downtown Library Mixed-Use Project (EDH) LOCATION: District 4 (continued)

MOTION (continued):

- Execute two ground leases to facilitate development of the Downtown Library Affordable Housing Project (DLAHP or DTMLU): Lease 1, a short-term lease, for Parcel 1 to develop and construct a Parking Garage, Library, and Commercial Retail Space (collectively, City Components) to be conveyed by the lessee and, thereafter, owned by the City, following completion of construction of the City Components; and Lease 2, a long-term lease, for Parcel 2 to develop, construct, own, and operate 123 affordable housing units (plus 1 manager's unit), and a daycare center (collectively, Residential Components) in a form approved by the City Attorney.

- Finalize and execute an Improvements Agreement and any other additional required documents with the affordable housing developers Eden Housing, Inc. and For the Future Housing, Inc. (and/or their affiliates) to identify terms and commitments and conditions necessary to develop, construct and fund the City Components of the DLAHP in a form approved by the City Attorney.

- Execute loan documents and regulatory agreements as required for the City's affordable housing funding sources in an amount not to exceed $7,255,621 for the Residential Components based on previous funding commitments, in forms approved by the City Attorney.

- Execute and negotiate any additional requested documents as required by the lender(s) and investor for the Residential Components, consistent with approved project terms, in a form approved by the City Attorney, to facilitate the financial closing for the DTLMU project, and the subsequent construction of the DTLMU project.

ACTION: The motion carried with the following vote.

AYES:	Councilmembers Trigueiro, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	Councilmember Brunner.

Consent Agenda (continued)

21. Second Amendment to the Agreement for Fire Protection and Emergency Response Services and First Amendment of Lease of the UCSC Fire Station (FD)

LOCATION: Citywide

Motion carried to authorize the City Manager to execute the Second Amendment to the Agreement for Fire Protection and Emergency Response Services (Service Agreement) and the Second Amendment of Lease of the UCSC Fire Station (Lease Agreement) between the City of Santa Cruz (City) and the Regents of the University of California, on behalf of its Santa Cruz Campus (UCSC), extending the term for one (1) year with minor modifications.

22. Liability Claims Filed Against the City of Santa Cruz (FN)

Motion carried to reject the liability claims of 1) Miah Murray, 2) Christina Olsen 3) Armando Tellez, 4) Michael Bradley Alerich, and to return as late the claim of 5) Installed Building Products, based on staff recommendation.

23. Pass-Through Agreement with Volunteer Center of Santa Cruz County - TDA Claimant (FN)

LOCATION: Citywide

Motion carried to authorize and direct the City Manager to execute an agreement with Volunteer Center of Santa Cruz County, allowing the City of Santa Cruz (City) to act as claimant for funds obtained from the Santa Cruz County Regional Transportation Commission (SCCRTC) for FY 2026.

24. Pass-Through Agreement with Community Bridges - TDA Claimant (FN)

LOCATION: Citywide

Motion carried to authorize and direct the City Manager to execute an agreement with Community Bridges, allowing the City of Santa Cruz (City) to act as claimant for funds obtained from the Santa Cruz County Regional Transportation Commission (SCCRTC) for FY 2026.

Consent Agenda (continued)

25. Proposition 4 GANN Appropriations Limit Adjustment Factors (FN)

LOCATION: Citywide

Resolution No. NS-30,524 was adopted to approve the selection of the annual adjustment factors to be utilized in the calculation of the City's Proposition 4 Appropriations Limit (GANN Limit) based on the adopted budget for FY 2026, with amendments thereto, if any.

26. Authorize the Transfer and Use of Police Public Safety Impact Fee Funds to Outfit Three (3) Replacement Ford Explorer Police Interceptor Vehicles - Budget Adjustment (PD/PW)

LOCATION: Citywide

Motion carried to:

- Adopt Resolution No. NS-30,525 authorizing the City Manager of the City of Santa Cruz to transfer funds from the Public Safety Impact Fee Fund 215, in the amount of $74,480.91, to the FY 2026 General Fund budget to cover labor and equipment costs for outfitting three (3) replacement Ford Explorer Police Interceptor vehicles; and

- Direct staff to utilize a County of Placer cooperative purchasing agreement (Contract No. SCN107418) with Lehr Auto (Hollister, CA) to procure the labor and equipment necessary to outfit the three (3) replacement Ford Explorer Police Interceptor vehicles, applying available PSIF funds in the amount of $74,480.91 and $8,406.60 from the Santa Cruz Police Department operational budget.

27. Contract Award for French Broom and Acacia Removal (PR)

District: Citywide

Motion carried to approve a contract with The Davey Tree Expert Company for the revised total amount of $123,540 for French Broom and Acacia removal services.

Consent Agenda (continued)

28. 2025 Update to City of Santa Cruz Public Works Standard Details (PW)

LOCATION: Citywide

Motion carried to:

- Approve the City of Santa Cruz Public Works Standard Details;

- Adopt Resolution No. NS-30,526 to approve the Standard Details and authorize the City Engineer to approve future revisions pursuant to Government Code section 830.6; and

- Find the City's Standard Details Categorically Exempt under CEQA Guidelines 14 CCR section 15301(c).

29. Contract Amendment 3 for Santa Cruz County Regional Bike Share Program (PW)

LOCATION: Citywide

Motion carried to authorize the City Manager to execute the Third Amendment to the Professional Service Agreement for Santa Cruz County Regional Bike Share Program in a form acceptable to the City Attorney and authorize the Public Works Director to execute future contract amendments within the project budget.

30. Resource Recovery Facility Permanent Stormwater Treatment System Project - Request for Proposals and Authorization to Advertise and Award (PW)

LOCATION: District 6

Motion carried to approve the plans and specifications and authorize staff to advertise and award a Request for Proposals (RFP) for Design, Construction, and Maintenance Services for the Resource Recovery Facility Stormwater Treatment System Project (c402111). The City Manager is hereby authorized and directed to execute the contract in a form approved by the City Attorney, as authorized by Resolution No. NS-27,563. The Public Works Director is authorized to execute change orders within the approved project budget.

Consent Agenda (continued)

31. Amendment to the Transportation and Public Works Commission's Bylaws (PW)

LOCATION: Citywide

Motion carried to approve the amended Transportation and Public Works Commission Bylaws as amended by the Transportation and Public Works Commission on May 19, 2025.

32. DeLaveaga Golf Course – Roofing Repair Project (c402604) (PW)

LOCATION: District 1

Motion carried to:

- Authorize the issuance of an Invitation for Bid (IFB) for the DeLaveaga Roofing Repairs Project (c402604) and award the contract. The City Manager is hereby authorized and directed to execute the contract in a form approved by the City Attorney. The Director of Public Works is authorized to execute change orders within the approved project budget; and

- Approve the California Environmental Quality Act (CEQA) determination contained in this Agenda Report, including the application of the following exemptions: (1) Class 1 Categorical Exemption (14 CCR 15301) for existing facilities, and (2) Common Sense Exemption (14 CCR 15061).

33. Escalona Drive Storm Drain Rehabilitation (c401610) – Notice of Completion (PW)

LOCATION: District 6

Motion carried to accept the work of Visionbuild Construction, LLC (Pacifica, CA) as completed per plans and specifications, authorize the filing of the Notice of Completion for the Escalona Drive Storm Drain Rehabilitation (c401610), and authorize the Public Works Director to sign the Notice of Completion as the Owner's Authorized Agent.

Consent Agenda (continued)

34. Emergency San Lorenzo River Lagoon Culvert Repair (e602302) - Contract Ratification - Budget Adjustment (PW)

LOCATION: Districts 2 and 4

Motion carried to:

- Ratify a contract for emergency work with Syblon Reid (Folsom, CA) for repair of the San Lorenzo River Lagoon Culvert in the amount of $222,849 and;

- Adopt Resolution No. NS-30,527 to amend the FY 2025 budget to appropriate funds in the amount of $222,849 Project (e602302) for emergency work to repair damages to the culvert system from a federally declared disaster.

35. Soquel/Front and Locust Street Garage Elevator Repairs (c401509 and c402106) (PW)

LOCATION: District 4

Motion carried to:

- Authorize the Public Works Department to issue an Invitation for Bid (IFB) for the Soquel/Front and Locust Street Garage Elevator Repairs (c401509 and c402106) and award the contract. The City Manager is hereby authorized to execute the contract in a form approved by the City Attorney. The Director of Public Works is authorized to execute change orders within the approved project budget; and

- Approve the California Environmental Quality Act (CEQA) determination contained in this Agenda Report. The Council's action is exempt from CEQA review under (1) Class 1 Categorical Exemption (14 CCR 15301) for existing facilities, and (2) Common Sense Exemption (14 CCR 15061).

36. Outside Repair Services to Citywide Assets - Budget Adjustment (PW)

LOCATION: Citywide

Resolution NO. NS-30,528 was adopted to amend the FY 2025 budget to appropriate funds in the amount for $85,000 for outside repair services for Citywide assets.

Consent Agenda (continued)

37. Purchase of NewWay Rear Loader Refuse Truck (PW)

LOCATION: Citywide

Motion carried to approve the purchase a NewWay Diamondback rear loader refuse truck from Ray Gaskin Service (Sacramento, CA) in the amount of $190,000.

38. Contract Amendment 2026-01 with HDR, Inc. for Capital Program Management Services (WT)

LOCATION: None.

Motion carried authorizing the City Manager to execu[redacted]tract Amendment 2026-01 with HDR, Inc. for Service Order No. 11 in the amount of $6,129,557 in a form to be approved by the City Attorney.

End Consent Agenda

At this time, Councilmember Brunner returned to the dais.

Consent Public Hearing

Mayor Keeley opened the public comment period. The following people spoke:

Kirk Dicicco spoke regarding item 40.

Dan spoke regarding item 40.

Elizabeth Graham spoke regarding item 40.

Unintelligible spoke regarding item 40.

Amir Hassan spoke regarding item 40.

Jimmy spoke regarding item 40.

Unidentified person spoke regarding item 40.

Ann Sekhon spoke regarding item 40.

Unidentified person spoke regarding item 40.

Consent Public Hearing (continued)

Leigh spoke regarding item 40.

Sam Ruple spoke regarding item 40.

Raleigh spoke regarding item 40.

Unidentified person spoke regarding item 40.

Samir Fidel spoke regarding item 40.

Unidentified person spoke regarding item 40.

Katie Thompson spoke regarding item 40.

Dani Mae Dawn spoke regarding item 40.

Unidentified person spoke regarding item 40.

Unintelligible spoke regarding item 40.

Tara Leonard spoke regarding item 40.

Unidentified person spoke regarding item 40.

Unidentified person spoke regarding item 40.

Unidentified person spoke regarding item 40.

Mayor Keeley closed the public comment period.

MOTION: Vice Mayor Kalantari-Johnson moved, seconded by Councilmember O'Hara, to approve the Consent Public Hearing Agenda.

Consent Public Hearing (continued)

FRIENDLY AMENDMENT: Councilmember O'Hara requested to amend item 40 to add the following:

- Direct staff to return to Council on or before the enforcement initiation date of the proposed ordinance, January 1, 2027, with a summary briefing to include:

  - The outcome of the City/County/local stakeholder collaborative effort to implement educational outreach for affected retailers, assisting them in the transition away from selling filtered tobacco products.

  - The recommended reporting template for the annual performance review of the filtered tobacco ordinance once implemented.

Vice Mayor Kalantari-Johnson accepted.

ACTION: The amended motion carried unanimously with the following vote.

AYES:	Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	None.

39. 2nd Reading and Final Adoption of Ordinance No. 2025-16 Designating Fire Hazard Severity Zones within the City of Santa Cruz's Local Responsibility Areas (LRAs) as recommended by the California Department of Forestry and Fire Protection (CalFIRE) pursuant to Government Code Section 51178 (FD)

    LOCATION: Citywide

    Ordinance No. 2025-16 was adopted adding Chapter 19.20 to the Santa Cruz Municipal Code to designate Fire Hazard Severity Zones within the City of Santa Cruz's Local Responsibility Area (LRA) as recommended by the California Department of Forestry and Fire Protection (CalFIRE) pursuant to Government Code Section 51178.

Consent Public Hearing (continued)

40. 2nd Reading and Final Adoption of Ordinance No. 2025-17 Amending Santa Cruz Municipal Code Chapter 6.07 to Prohibit the Sale of Filtered Tobacco Products (CM)

    LOCATION: Citywide

    Ordinance No. 2025-17 was adopted amending Chapter 6.07 "Tobacco Retailer Licenses" of the Santa Cruz Municipal Code to prohibit the sale of filtered tobacco products.

Council took a break at 5:05 p.m. and returned at 5:27 p.m.

General Business

41. Ocean Street Beautification Project (EDH)

LOCATION: District 1

Asset and Development Manager D. McCormic gave a presentation and responded to Council questions.

Mayor Keeley opened the public comment period. The following people spoke.

Unidentified person
Chris Mosley
Melissa Marzan

Mayor Keeley closed the public comment period.

MOTION: Councilmember Trigueiro moved, seconded by Councilmember Brunner, to:

- Authorize the City Manager or designee to take actions necessary to prepare construction plans and specifications for the Ocean Street Beautification Project.

- Authorize the City Manager to enter into contracts with Melissa Marzan and Idea Fab Labs for art signage, and Chris Mosley for public art, including execution of related actions and documents in forms approved by the City Attorney, in an amount not to exceed the approved project budget.

- Direct staff to identify other locations throughout the city for consideration of public art generated from concepts created for the Ocean Street Beautification Project.

General Business (continued)

41. Ocean Street Beautification Project (EDH)

LOCATION: District 1

MOTION (continued):

- Approve the CEQA determination contained in this Agenda Report. The Council's action is exempt from CEQA under Section 15262 – Feasibility and Planning Studies, Sections 15301 – Existing Facilities, and 15304 – Minor Alterations to Land.

FRIENDLY AMENDMENT: Councilmember Trigueiro requested to amend the motion to include the following:

- Direct staff to try to reserve $25,000—$50,000 for future adaptive measures within the design.

Councilmember Brunner accepted.

FRIENDLY AMENDMENT: Mayor Keeley requested to add:

- Direct staff to provide various fencing design alternatives intended to deter or restrict public access to the area.

Councilmembers Trigueiro and Brunner accepted.

ACTION: The amended motion carried unanimously with the following vote.

AYES:	Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	None.

Public Hearings

42. Heritage Tree Mitigation/Replanting In Lieu Fee and Tree Bond Update (PR)
LOCATION: Citywide

This item was continued to the meeting of August 12, 2025 and was not discussed.

The City Council took a break at 6:09 p.m. and returned at 6:15 p.m.

43. 530/542/548 Ocean Street: CP24-0071 (APN 010-011-16, -30, -31) Appeal of the Planning Commission Approval of a Nonresidential Demolition Authorization Permit, Lot Line Adjustment, Watercourse Development Permit, Design Permit, Heritage Tree Permits, Density Bonus Request, and Sign Permit to Demolish Four Commercial Buildings, Combine Three Lots into One Lot, Remove Four Heritage-sized Trees and Prune more than 25-percent of the Canopy of One Heritage-sized Tree, and Construct a Six-story Mixed-Use Building with 225 Residential Units and Ground Floor Commercial Area within the Development Setback Area of a Category B Creek on Property Located in the C-C/FP-O (Community Commercial / Floodplain Overlay) Zone Districts and within the Ocean Street Area Plan. Environmental Review: Categorical Exemption 15332, In-Fill Development Projects. Owner: Riaz Capital. (PL)

LOCATION: District 2

Senior Planner R. Zhou gave a presentation and responded to Council questions.

Director of Public Works N. Nguyen and Principal Transportation Planner C. Gallogly responded to Council questions.

Appellant Eric Grabiel and his representative, Elise Cossart-Daly, attorney with Cossart-Daly Law, A.P.C., gave a presentation.

Applicant Lisa Vilhauer, Lead of Entitlements and Design with Riaz Capital, gave a presentation and responded to Council questions.

Mayor Keeley opened the public comment period. The following people spoke.

Brian Shields
Leslie Wooding
Dave Willis
Eric Grodberg
Sean Ledingham
Deborah Marx

Public Hearings (continued)

43. 530/542/548 Ocean Street: CP24-0071 (APN 010-011-16, -30, -31) Appeal of the Planning Commission Approval (PL) LOCATION: District 2 (continued)

Public comment (continued):

Jennifer Merchant
Don Landis
Gillian Greensite
Liz Lindsay
Gavin Roth
Janine Roth

Mayor Keeley closed the public comment period.

Appellants Eric Grabiel and Elise Cossart-Daly gave a rebuttal.

MOTION: Councilmember Brunner moved, seconded by Councilmember Golder, to adopt Resolution No. NS-30,529 denying the appeal thereby upholding the Planning Commission's acknowledgement of the environmental determination (Categorical Exemption Section 15332, Class 32) and approval of the Nonresidential Demolition Authorization Permit, Lot Line Adjustment, Watercourse Development Permit, Design Permit, Heritage Tree Permits, Density Bonus request, and Sign Permit, based on the findings listed in the draft resolution and the Conditions of Approval attached as Exhibit "A," ensuring the voluntary changes to date are included in the Conditions of Approval.

Director of Planning and Community Development L. Butler responded to Council questions.

Public Hearings (continued)

43. 530/542/548 Ocean Street: CP24-0071 (APN 010-011-16, -30, -31) Appeal of the Planning Commission Approval (PL) LOCATION: District 2 (continued)

FRIENDLY AMENDMENT: Councilmember O'Hara requested to amend the motion to add:

- Direct staff to add a condition of approval of a $50/annual reimbursement to residents with proof of monthly transit pass purchase.
- Direct staff to incorporate new/amended objective design standards as part of the regular standards update process, with a focus on improving privacy and neighborhood transitions in mixed-use and commercial zones abutting residential areas. The recommendations should consider:
    - Standards or guidelines for balcony and window placement to reduce privacy impacts at rear-yard interfaces;
    - Requirements for privacy-enhancing window treatments, such as top-down blinds or partial frosting, where appropriate;
    - Enhanced standards for landscape buffers and rear yard screening, including evergreen plantings;
    - Objective fencing requirements along rear and side property lines, with attention to material compatibility and site feasibility;
    - Feasibility of applying privacy screening to rear-facing balconies; and
    - Improved clarity and consistency around lighting, transition planes, and other elements that affect adjacent lower-density neighborhoods.
- Direct staff to, within the next 12 months, provide a report to Council to include:
    - Summary of opportunities to update the Ocean Street Plan to maximize the use of objective design standards.
    - Legal analysis of local interpretation and application of AB2097, codified in Government Code section 65863.2, as well as Municipal Code section 24.12.220, which permits the City to eliminate any parking requirements for projects that are within one half mile of a major transit stop, to establish an intent for the prescribed maximum distance to be path of travel rather than a straight line.

Councilmembers Brunner and Golder accepted.

Public Hearings (continued)

43. 530/542/548 Ocean Street: CP24-0071 (APN 010-011-16, -30, -31) Appeal of the Planning Commission Approval (PL) LOCATION: District 2 (continued)

ACTION: The amended motion carried with the following vote.

AYES:	Councilmembers Brunner, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	Councilmembers Trigueiro, Newsome.
ABSENT:	None.
DISQUALIFIED:	None.

Adjournment – Councilmember Trigueiro moved, seconded by Councilmember Golder, to adjourn. By consensus City Council adjourned at 9:20 p.m.

RESPECTFULLY SUBMITTED: ss/Julia Wood, Deputy City Clerk Administrator,
ATTEST: ss/Bonnie Bush, City Clerk Administrator, APPROVED: ss/Fred Keeley, Mayor.

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